GOVERNMENT OF KERALA

Abstract

Forest & Wild Life Department —Fixing Compensation rates for various crops (individually) lost due to attack by wild animals - Orders issued in compliance of assurance given in G.O.(Rt) No. 101/2014/F&WLD dated 03.03.2014 and direction of the Hon. Human Rights Commission in HRMP No.5671/2014 dated 02/07/2014 and 04/09/2014.

FOREST & WILD LIFE (D) DEPARTMENT

GO (Ms) No. 02/2015/F&WLD Thiruvananthapuram, Dared: 08.01.2015

Read: 1) The Kerala Rules for Compensation to victims of Attack by Wild animals Rules,1980

2) G.O.(MS), No. 96/2004/Agri dated 06.04.2004 issued from the Agriculture Department
3) G.O.(MS) No. 239/2012/DMD dated 11.06.2012 issued from the Revenue Department
4) G.O.(Ms) No.32/2013/F&W1D dated 22.03.2013
5) G.0.(Rt) No. 101/2014/F&WLD dated 03.03.2014
6) W.P © 16692/2014 filed by Smt. Laissy Thomas before the Hon'ble High Court
7) Order of the Hon Human Rights Commission dated 02/07/2014 and 04/09/2014
8) Letter No. WLI-2081/2011 dated 08.07.2014 from the Principal Chief Conservator of Forests(Wildlife), Thiruvananthapuram

O R D E R

Government have enacted the Kerala Rules for payment of Compensation to the victims of attack by wild animals, 1980 *(read as 1St paper above)* with a view to provide assistance to the affected parties for death, injury and loss of crops houses etc. due to the attack by wild animals. The Rules were amended from time to time making sufficient increase in the rates of compensation payable to victims. However, the Forest Department have not issued separate orders for calculating the value of lost crops individually, instead, the value of loss of individual crops were calculated based on the Government orders issued by the Agriculture Department from time to time. The latest order issued by the Agriculture Department in this regard is read as 2nd paper above.

After the year 2004 Agriculture Department have not issued any orders fixing the rates of compensation for loss of crops. Agriculture Department now follows the rates fixed the Revenue Disaster Management Department for calculating the compensation for loss of *crops.(order read as 3rd paper above)* .

2) As per G.0 read as 4th paper above Government have revised the total compensation payable for loss of crops due attack of Wildanimals from Rs. 50,000/- to Rs.75,000/- and the payment to a particular individual for loss has been restricted to 4 times a year.

3) In the G.O read as 5th paper above an undertaking was given by the Government for preparing a comprehensive proposal for payment of compensation considering not only the cultivated area of the lost crops but also the age of destroyed crops. In the meantime Smt Laissy Thomas, a resident of Idukki District has filed Writ Petition read as 6th paper above requesting to direct the Government to issue orders for fixing compensation for crops considering age of the destroyed crops also The Hon. Hunian Rights Commission vide orders read as 7th paper above has also directed the Government to revise the compensation payable for loss of individual crops considering the-present conditions.

4) A meeting regarding the issue was held on 31.10.2014 and it was decided to fix compensation for loss of crops individually with a 10% increase on the rates fixed by the Disaster Management (Revenue-K) Department vide G.O read as 3rd paper above as detailed below:

Name of Crop	Rates fixed by the Revenue Department vide G.O (MS) No. 239/2012/ DMD dated 11.06.2012	Rate to be fixed by the Forest Department (with _10% increase on rates mentioned at Column 2)
Paddy (per ha.)	10000	11000
Coconut (Bearing per No.)	700	770
Coconut (Not Bearing per No.)	350	385
Coconut (up to one year per No.)	100	110
Banana (Bunched per No.)	100	110
Banana (Non Bunched per No.)	75	83
Rubber (Tapping Per No.)	300	330

Rubber (Non taaping per No.)	200	220
Cashew (bearing per No.)	150	165
Cashew (Non bearing above 3/years per No.)	100	110
Arecanut (bearing per No.)	150	165
Arecanut (Non bearing per No.)	100	110
Cocoa (Bearing per No.)	100	110
Coffee (per No)	100	110
Pepper (bearing per No)	75	83
Ginger(for 10 cents)	150	165
Turmeric (for 10 cents)	120 .	132
'Tapioca (grown above two months)	150	165
Groundnut (ha)	2000	2200
Sesamum (50 cents)	1200	1320
Vegetables (for 10 cents)	200	220
Nutmeg (bearing per No)	400	440
Nut meg (non bearing)	150	165
Clove (bearing per No)	200	220
CloVe (non bearing per No)	100	110
Cardamom (ha)	2500	2750
Betel vine (1 cent)	300	330
Pulses (1 ha)	1000	1100
Tuber Crops (Colossiayam. etc) 10 cents	150	165
Sugar cane (1 ha)	2500	2750
Pineapple (for 10 cents)	750	825
Fodder grass (10 cents)	150	165
Mulberry (50 cents)	750	825
Tobacco (10 cents)	1500	1650
Cotton (10 cents)	300	330

5) In the circumstances Government are pleased to fix the rates of compensation payable to the loss of crops (each crop separately) due to attack of wild animals as

detailed below. The total compensation payable will be subject to the amount and conditions specified in Government order read as 4th paper above.

Name of Crop	Rate of compensation to be payable for loss of crops
Paddy (per ha.)	11000
Coconut (Bearing per No.)	770
Coconut (Not Bearing per No.)	385
Coconut (up to one year per No.)	110
Banana (Bunched per No.)	110
Banana Non Bunched per No.) ,	83
Rubber (Tapping Per no)	330
Rubber (Non tapping per No.)	220
Cashew (bearing per No.)	165
Cashew (Non bearing above 3 years per No.)	110
Arecanut (bearing per No.)	165
Arecanut (Non bearing per No.)	110
Cocoa (Bearing per No.)	110
Coffee (per No)	110
Pepper (bearing per No)	83
Ginger (for 10 cents)	165
Turmeric for 10 cents)	132
Tapioca (grown above two months)	165
Groundnut (per ha.)	2200
Sesamum (for 50 cents)	1320
Vegetables (for 10 cents)	220
Nutmeg (bearing per No) .	440
Nut meg (non bearing)	165
Clove (bearing per No)	270
Clove (non bearing per No)	110
Cardamom (per ha.)	2750
Betel vine (1 cent)	330
Pulses (per 1 ha.)	1100
Tuber Crops (Colossiayam etc) for 10 cents	165

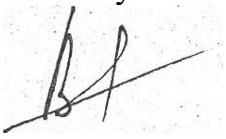
Sugar cane (per ha)	2750
Pineapple (for 10 cents)	825
Fodder grass (for 10 cents)	165
Mulberry "(for 50 cents)	825
Tobacco (for 10 cents)	1650
Cotton (for 10 cents)	330

(By order of the Governor)

P.K.MOHANTY
Additional Chief Secretary

1) The Principal Chief Conservator of Forests & Head of Forest Forces, Thi ananthapuram.
2 he Principal Chief Conservator of Forests (WL), Thiruvananthapuram.
3) The Accountant General (A&E/Audit), Thiruvananthapuram.
4) The Advocate General Eranakulam (with C/L)
5) The Registrar, Kerala State Human Rights Commission, Thiruvananthapuram (With C/L)
6)- The Director, I & PRD (for uploading in official website)
7) Stock File/Office Copy

Forwarded/by order



Section Officer